

HOUSE BILL 1721

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to court costs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-25-123, is amended by adding
the following as a new subsection:

(d) A court shall not assess court costs against a defendant if:

(1) The defendant is found not guilty by a jury or by a judge following a
bench trial on all charges for which the defendant was accused;

(2) The prosecution is dismissed or a nolle prosequi is entered by the
state; or

(3) The charges against the defendant are dismissed by the court.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.